



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☒ Overseas Post U.S. Embassy Buenos Aires
Requiring Activity	Facility Management Office

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to solicit and award on a sole-source basis a contract to Limpiolux S.A., Emilio Frers 2154, Martinez, Provincia de Buenos Aires, Argentina, for the supplies and/or services described in Section 3 on behalf of the Requiring Activity.

The contract type will be a Firm-Fixed-Price (FFP) Indefinite-Delivery, Indefinite Quantity contract.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The requirement is to provide janitorial services at the Office Building Chancery and the Chief of Mission Residence in Buenos Aires, Argentina. These services require that the contractor performs janitorial services in all designated spaces including, but not limited to halls, offices, restrooms, work areas, entrance ways, lobbies, storage areas, elevators and stairways, furnishing all managerial, administrative, and direct labor personnel that are necessary to accomplish the work in this contract. This will allow the Office of Facility Management to maintain a healthy, clean, and orderly work environment for the Ambassador, all mission employees, visitor, and contractors on-site.

The estimated value for the entire period of performance is USD 111,243.21 with no option periods.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following:

- ☒ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.
- ☒ FAR 6.302-2 – Unusual and compelling urgency.
- ☐ FAR 6.302-3 – Industrial mobilization; engineering, developmental, or research capability; or expert service.
- ☐ FAR 6.302-4 – International Agreement.
- ☐ FAR 6.302-5 – Authorized or required by statute.
- ☐ FAR 6.302-6 – National Security.
- ☐ FAR 6.302-7 – Public Interest.



SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

Limpiolux S.A. is uniquely qualified to provide these services to Embassy Buenos Aires based upon the following:

- a. They have all their crew members cleared by the Embassy Security Office, who has issued them contractor's badges as the nature of their work requires that they move around the buildings without the need for escorts.
These clearances typically take between three to five months. Given that the current contract expires on March 31, 2025, and that these services cannot be interrupted, Limpiolux is the only company capable of providing continuing services under such time constraints.
- b. Limpiolux has been performing these same services for the Embassy since May 2017. As a result, the staff is completely familiarized with the technical and operational requirements and can perform at satisfactory levels -and even beyond based on recent positive feedback from Embassy personnel-uninterruptedly.

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

At this moment, the Program Office and the Contracting Office at Post are working on a competitive solicitation to award a multi-year contract (RFQ 19AR2024Q0006). This contract opportunity was synopsized and advertised in SAM.gov.

No additional market research was conducted because it is not practicable, for the reasons discussed in paragraph 5 above, for any company other than ABC to provide the required supplies and services.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contracting Officer has determined the anticipated price to the Government of the services covered by this J&A will be fair and reasonable based on independent estimate. By signing the justification, the Contracting Officer makes a determination that the price to the Government is expected to be fair and reasonable.

SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

Considering that the services required by the Embassy are specific to the nature of the buildings -most specially the Chief of Mission Residence, which is a historical building that demands specific cleaning techniques and procedures-, it is not feasible to conduct a market survey that would yield adequate and valid pricing information for this limited period of performance.



SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

Statements of work for a competitive solicitation were available in due time to avoid the need for an interim award. However, obtaining the certification of funds availability from the FMO took over a quarter, and after it was received it imposed the need to revise the SOWs to minimize services as much as possible. The result of this changes caused a significant delay that required post to extend the current contract and, as more time is still needed to finalize the existing competitive solicitation, issue an interim award to provide continuing services to this mission.

Performance has been acceptable throughout the life of the contract, and previous prices from the incumbent have been consistently fair and reasonable based on adequate competition

SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

To date, no other sources have written to express an interest.

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

After this interim contract is awarded, Post FAC and Procurement personnel will finalize a competitive-awarded multi-year contract that is currently being publicized in SAM.gov.